

1 ENGROSSED HOUSE
2 BILL NO. 4227

By: Kannady and Miller of the
House

3 and

4 Weaver of the Senate
5
6

7 An Act relating to child sexual abuse; creating the
8 Cindy Clemishire Act; creating Trey's Law;
9 prohibiting the concealing of details relating to
10 certain claims; requiring confidentiality of certain
11 identifying information; making prohibitions
12 applicable to agreements entered into on certain
13 date; providing exceptions; amending 22 O.S. 2021,
14 Section 40.3A, which relates to reports of sexual
15 crimes; modifying scope of reporting requirement
16 exception; amending 22 O.S. 2021, Section 152, as
17 last amended by Section 1, Chapter 115, O.S.L. 2025
18 (22 O.S. Supp. 2025, Section 152), which relates to
19 criminal procedure; authorizing the prosecution of
20 sexual crimes against children to be brought at any
21 time; providing for noncodification; providing for
22 codification; and providing an effective date.
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

Sections 4 and 5 of this act shall be known and may be cited as
the "Cindy Clemishire Act".

SECTION 2. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

1 Section 3 of this act shall be known and may be cited as "Trey's
2 Law".

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 3020 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Notwithstanding any other provision of law, any provision of
7 a settlement agreement that has the purpose or effect of concealing
8 the details relating to a claim of child sexual abuse, as defined in
9 Section 843.5 of Title 21 of the Oklahoma Statutes, or child sexual
10 exploitation, as defined in Section 1-1-105 of Title 10A of the
11 Oklahoma Statutes, and including such offenses set forth in Title 21
12 of the Oklahoma Statutes, is void and unenforceable as contrary to
13 the public policy of this state. Provided, however, that
14 identifying information concerning a victim of child sexual abuse or
15 child sexual exploitation shall be deemed and maintained as
16 confidential.

17 B. Subject to subsection C of this section, subsection A of
18 this section shall apply to an agreement entered into before, on, or
19 after the effective date of this act.

20 C. An individual or entity may not enforce or attempt to
21 enforce an agreement or a provision of an agreement described by
22 subsection A of this section and entered into before the effective
23 date of this act unless:
24

1 1. A cause of action related to the agreement was initiated
2 prior to the effective date of this act; and

3 2. The individual or entity obtains a declaratory judgment that
4 is final and not subject to appeal and declares that the agreement
5 or provision is enforceable.

6 SECTION 4. AMENDATORY 22 O.S. 2021, Section 40.3A, is
7 amended to read as follows:

8 Section 40.3A. A. Any physician, surgeon, resident, intern,
9 physician assistant, registered nurse, or any other health care
10 professional examining, attending, or treating the victim of what
11 appears to be or is reported by the victim to be rape, rape by
12 instrumentation, or forcible sodomy, as defined in Section 1111,
13 1111.1 or 888 of Title 21 of the Oklahoma Statutes or any form of
14 sexual assault, shall not be required to report any incident of what
15 appears to be or is reported to be such crimes if:

16 1. Committed upon a person who is over the age of eighteen (18)
17 years; ~~and~~

18 ~~2. The person and~~ is not an incapacitated adult; or

19 2. Committed between minors, as revealed during the course of a
20 medical history review, without evidence or a report of coercion,
21 exploitation, threat, or intimidation.

22 B. Any physician, surgeon, resident, intern, physician
23 assistant, registered nurse, or any other health care professional
24 examining, attending, or treating a victim shall be required to

1 report any incident of what appears to be or is reported to be rape,
2 rape by instrumentation, forcible sodomy, or any form of sexual
3 assault, if requested to do so either orally or in writing by the
4 victim and shall be required to inform the victim of the victim's
5 right to have a report made. A requested report of any incident
6 shall be promptly made orally or by telephone to the nearest law
7 enforcement agency in the county wherein the sexual assault occurred
8 or, if the location where the sexual assault occurred is unknown,
9 the report shall be made to the law enforcement agency nearest to
10 the location where the injury is treated.

11 C. In all cases of what appears to be or is reported to be
12 rape, rape by instrumentation, forcible sodomy, or any form of
13 sexual assault, the physician, surgeon, resident, intern, physician
14 assistant, registered nurse, or any other health care professional
15 examining, attending, or treating the victim of what appears to be
16 such crimes, shall clearly and legibly document the incident and
17 injuries observed and reported, as well as any treatment provided or
18 prescribed.

19 D. In all cases of what appears to be or is reported to be
20 rape, rape by instrumentation, forcible sodomy, or any form of
21 sexual assault, the physician, surgeon, resident, intern, physician
22 assistant, registered nurse, or any other health care professional
23 examining, attending, or treating the victim of what appears to be
24 rape, rape by instrumentation, forcible sodomy, or any form of

1 sexual assault, shall refer the victim to sexual assault and victim
2 services programs, including providing the victim with twenty-four-
3 hour statewide telephone communication service established by
4 Section 18p-5 of Title 74 of the Oklahoma Statutes.

5 E. Every physician, surgeon, resident, intern, physician
6 assistant, registered nurse, or any other health care professional
7 making a report of rape, rape by instrumentation, forcible sodomy,
8 or any form of sexual assault pursuant to this section or examining
9 such victims to determine the likelihood of such crimes, and every
10 hospital or related institution in which the victims were examined
11 or treated shall, upon the request of a law enforcement officer
12 conducting a criminal investigation into the case, provide to the
13 officer copies of the results of the examination or copies of the
14 examination on which the report was based, and any other clinical
15 notes, X-rays, photographs, and other previous or current records
16 relevant to the case.

17 SECTION 5. AMENDATORY 22 O.S. 2021, Section 152, as last
18 amended by Section 1, Chapter 115, O.S.L. 2025 (22 O.S. Supp. 2025,
19 Section 152), is amended to read as follows:

20 Section 152. A. Prosecutions for the crimes of bribery,
21 embezzlement of public money, bonds, securities, assets or property
22 of the state or any county, school district, municipality or other
23 subdivision thereof, or of any misappropriation of public money,
24 bonds, securities, assets or property of the state or any county,

1 school district, municipality or other subdivision thereof,
2 falsification of public records of the state or any county, school
3 district, municipality or other subdivision thereof, and conspiracy
4 to defraud the State of Oklahoma or any county, school district,
5 municipality or other subdivision thereof in any manner or for any
6 purpose shall be commenced within seven (7) years after the
7 discovery of the crime; provided, however, prosecutions for the
8 crimes of embezzlement or misappropriation of public money, bonds,
9 securities, assets or property of any school district, including
10 those relating to student activity funds, or the crime of
11 falsification of public records of any independent school district,
12 the crime of criminal conspiracy, the crime of embezzlement pursuant
13 to Sections 1451 through 1461 of Title 21 of the Oklahoma Statutes,
14 the crime of False Personation or Identity Theft pursuant to
15 Sections 1531 through 1533.3 of Title 21 of the Oklahoma Statutes,
16 the financial exploitation of a vulnerable adult pursuant to
17 Sections 843.1, 843.3 and 843.4 of Title 21 of the Oklahoma
18 Statutes, or Medicaid fraud pursuant to Section 1005 of Title 56 of
19 the Oklahoma Statutes, shall be commenced within five (5) years
20 after the discovery of the crime.

21 B. Prosecutions for criminal violations of any state income tax
22 laws shall be commenced within five (5) years after the commission
23 of such violation.

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1 C. 1. Prosecutions for sexual crimes against children,
2 specifically rape or forcible sodomy, sodomy, lewd or indecent
3 proposals or acts against children, involving minors in pornography
4 pursuant to Section 886, 888, 1111, 1111.1, 1113, 1114, 1021.2,
5 1021.3, 1040.12a or 1123 of Title 21 of the Oklahoma Statutes, any
6 offense prohibited by Section 843.5 of Title 21 of the Oklahoma
7 Statutes, sexual abuse of a vulnerable adult pursuant to Section
8 843.1 of Title 21 of the Oklahoma Statutes, child trafficking
9 pursuant to Section 866 of Title 21 of the Oklahoma Statutes,
10 nonconsensual dissemination of private sexual images pursuant to
11 Section 1040.13b of Title 21, and failure to report abuse or neglect
12 pursuant to Section 1-2-101 of Title 10A of the Oklahoma Statutes
13 ~~shall~~ may be commenced ~~by the forty-fifth birthday of the alleged~~
14 ~~victim~~ at any time after the commission of the offense. Any offense
15 for which the prosecution is not time-barred upon the effective date
16 of this act shall be subject to the provisions of this subsection.
17 Prosecutions for such crimes committed against victims eighteen (18)
18 years of age or older shall be commenced within twenty (20) years
19 after the discovery of the crime. As used in this paragraph,
20 "discovery" means the date that a physical or sexually related crime
21 involving a victim eighteen (18) years of age or older is reported
22 to a law enforcement agency. Any offense for which the prosecution
23 is not time-barred upon the effective date of this act shall be
24 retroactively subject to the provisions of this subsection.

1 2. However, prosecutions for the crimes listed in paragraph 1
2 of this subsection may be commenced at any time after the commission
3 of the offense if:

4 a. physical evidence is collected and preserved that is
5 capable of being tested to obtain a profile from
6 deoxyribonucleic acid (DNA), and

7 b. probable cause as to the identity of the offender is
8 subsequently established through the use of a DNA
9 profile using evidence listed in subparagraph a of
10 this paragraph, or

11 c. the accused person has provided a confession or
12 admission related to the crime.

13 3. No prosecution under this subsection shall be based upon the
14 memory of the victim that has been recovered through psychotherapy
15 unless there is some evidence independent of such repressed memory.

16 4. Any person who knowingly and willfully makes a false claim
17 pursuant to this subsection or a claim that the person knows lacks
18 factual foundation may be reported to local law enforcement for
19 criminal investigation and, upon conviction, shall be guilty of a
20 felony.

21 D. Prosecutions for criminal violations of any provision of the
22 Oklahoma Wildlife Conservation Code shall be commenced within three
23 (3) years after the commission of such offense.

1 E. Prosecutions for the crime of criminal fraud or workers'
2 compensation fraud pursuant to Section 1541.1, 1541.2, 1662 or 1663
3 of Title 21 of the Oklahoma Statutes shall commence within three (3)
4 years after the discovery of the crime, but in no event greater than
5 seven (7) years after the commission of the crime.

6 F. Prosecution for the crime of false or bogus check pursuant
7 to Section 1541.1, 1541.2, 1541.3 or 1541.4 of Title 21 of the
8 Oklahoma Statutes shall be commenced within five (5) years after the
9 commission of such offense.

10 G. Prosecution for the crime of solicitation for murder in the
11 first degree pursuant to Section 701.16 of Title 21 of the Oklahoma
12 Statutes shall be commenced within seven (7) years after the
13 discovery of the crime. For purposes of this subsection,
14 "discovery" means the date upon which the crime is made known to
15 anyone other than a person involved in the solicitation.

16 H. In all other cases a prosecution for a public offense must
17 be commenced within three (3) years after its commission.

18 I. Prosecution for the crime of accessory after the fact must
19 be commenced within the same statute of limitations as that of the
20 felony for which the person acted as an accessory.

21 J. Prosecution for the crime of arson pursuant to Section 1401,
22 1402, 1403, 1404 or 1405 of Title 21 of the Oklahoma Statutes shall
23 be commenced within seven (7) years after the commission of the
24 crime.

1 K. Prosecutions for criminal violations in which a deadly
2 weapon is used to commit a felony or prosecutions for criminal
3 violations in which a deadly weapon is used in an attempt to commit
4 a felony shall be commenced within seven (7) years after the
5 commission of the crime.

6 L. Prosecutions for the crime of human trafficking pursuant to
7 Section 748 of Title 21 of the Oklahoma Statutes shall be commenced
8 within three (3) years after discovery of the crime. For purposes
9 of this subsection, "discovery" means the date upon which the crime
10 is reported to a law enforcement agency.

11 SECTION 6. This act shall become effective November 1, 2026.

12 Passed the House of Representatives the 17th day of March, 2026.

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14 _____
15 Presiding Officer of the House
16 of Representatives

17 Passed the Senate the _____ day of _____, 2026.

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19 _____
20 Presiding Officer of the Senate
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